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California Legislature passes food chemicals bill once hyped as 'Skittles ban'

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Author: Alex Shultz | Section: Food | 304 Words
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A bill intended to curb the inclusion of potentially unhealthy food chemicals in some of America's favorite snacks and carbonated drinks easily passed the California Legislature on Tuesday, and will head to Gov. Gavin Newsom's office for his signature.

Authored by Assemblymember Jesse Gabriel, a Democrat representing Encino, Assembly Bill 418 bans the manufacturing and sale of food products that contain any of four common additives: brominated vegetable oil, potassium bromate, propylparaben and red dye 3. As Gabriel noted in a Tuesday press release, these chemicals are widely banned in many parts of the world "due to scientific research linking them to significant health harms."

An earlier version of AB 418 would have also barred titanium dioxide, a chemical used in Skittles, which jump-started a tizzy of headlines and worries from Skittles lovers. However, a titanium dioxide ban was ultimately removed from the bill during the legislative process. It's also unlikely such a ban would've been a death knell for Skittles in California; AB 418 gives manufacturers until 2027 to remove the aforementioned chemicals from their products.

On Tuesday, Forbes reported on a few products that will need to adjust their recipes by 2027. They include Yoo-hoo strawberry drinks and Brach's Candy Corn.

The National Confectioners Association predictably came out against AB 418, arguing that "there is no evidence to support banning the ingredients listed in the bill." But its lobbying efforts against the bill were, according to disclosure forms, fairly minimal, perhaps because the group recognized a Democratic supermajority was unlikely to be swayed on this issue.

Newsom hasn't publicly signaled where he stands on AB 418, but there's nothing in his voting history or recent rhetoric to suggest he wouldn't sign off on the bill, which also has the support of former Gov. Arnold Schwarzenegger.

"Things like this aren't partisan," Schwarzenegger wrote in his Pump Club newsletter. "They're common sense."

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